

## WILMA · MULTI-JURISDICTION REFERENCE

# Idaho — Record-Clearing Reference Pack

Idaho has no general adult conviction expungement. Relief runs through four narrow, track-specific routes: **ISP non-conviction expungement**, **Clean Slate shielding**, **juvenile expungement**, and **trafficking-survivor vacatur**.

| Administering bodies                  | Primary statutes                  | ISP form                    | ISP timeline |
|---------------------------------------|-----------------------------------|-----------------------------|--------------|
| Idaho State Police (BCI) & the courts | I.C. §67-3004; §20-525A; §67-3014 | BCI Expungement Application | ~30 days     |

## Read this first: Idaho is a restricted-relief state

Unlike Florida or Hawaii, an Idaho adult with an ordinary conviction generally cannot expunge it. The word “expungement” in Idaho applies mainly to **non-conviction** records held by the state police. Adult conviction relief is narrow: a single Clean Slate “shield,” trafficking-survivor vacatur, or a discretionary, case-by-case court sealing. Pick the track before choosing a form.

## Four tracks at a glance

| TRACK                                | WHO IT'S FOR                                                                                                                                                                                         | ROUTE & STATUTE                                                                    |
|--------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------|
| <b>1. Non-conviction expungement</b> | Arrest/summons not charged within one (1) year; acquittal of all offenses; or all charges dismissed. Does not apply to §19-2604(1) withheld-judgment dismissals.                                     | Written request to ISP. <b>I.C. §67-3004(10)</b>                                   |
| <b>2. Clean Slate shielding</b>      | One non-violent misdemeanor, or one felony drug-possession conviction, after a 5-year wait from completion of sentence. One crime (or single-incident crimes) per lifetime.                          | Court process; shield can be revoked on later conviction. <b>I.C. §67-3004(11)</b> |
| <b>3. Juvenile expungement</b>       | Most juvenile adjudications, diversions, and informal adjustments. Serious offenses excluded (murder, voluntary manslaughter, rape, arson, aggravated battery, drug trafficking, injury to a child). | Petition to juvenile court; records sealed. <b>I.C. §20-525A</b>                   |

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**4. Trafficking-survivor relief**

Survivors of human trafficking, for prostitution-related and other qualifying offenses that resulted from acts of trafficking.

Court “shall” vacate and expunge on a preponderance finding. **I.C. §67-3014**

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## Track 1 in detail — ISP non-conviction expungement (§67-3004(10))

This is the track the ISP Expungement Application form serves, and the one most comparable to other states’ administrative expungement. On written request, the state police expunge the fingerprint and criminal history record connected to the incident, and the official court file may be sealed. Eligibility:

- Arrested or served a criminal summons, and not charged by indictment or information within one (1) year; or
- Acquitted of all offenses arising from the arrest or summons; or
- Had all charges dismissed.

Key exclusion: this does **not** apply to a dismissal granted under §19-2604(1) — i.e., where a conviction was entered and then a withheld judgment was later granted. A sex-offense record is also outside this process. Successful probationers seeking conviction relief should instead look at a §19-2604 set-aside, which dismisses the charge and restores civil rights but is not an expungement.

### What to attach to the ISP application

- Proof of the charging document — criminal citation, complaint and summons, indictment, or information.
- A certified court order of acquittal (stating not guilty of the charged crime(s)); or
- A certified court order of dismissal (showing which crime(s) were dismissed).
- Self-addressed stamped envelope if you want notification.

*Incomplete applications, or those missing the required documentation, are returned unprocessed. Allow about 30 days. Mail to Idaho State Police, 700 S. Stratford Dr., Ste. 120, Meridian, ID 83642.*

## Choosing the right path

Match the person’s situation to the track before reaching for a form:

**No charge within a year, acquittal, or dismissal**

Track 1 — ISP Expungement Application.

**One old non-violent misdemeanor or drug-possession felony, 5+ years clean**

Track 2 — Clean Slate shield (court).

**Record from under age 18**

Track 3 — juvenile expungement petition (§20-525A).

**Offense resulted from being trafficked**

Track 4 — vacatur and expungement (§67-3014).

**Completed probation, wants civil rights back**

Not expungement — consider a §19-2604 set-aside.

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*Prepared as a plain-language reference for the Wilma knowledge base. Summarizes Idaho statute and ISP procedure as of June 2026 and is not legal advice. Idaho heavily restricts adult conviction relief; statutory text and current ISP form revisions govern — verify before filing.*

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